

HOUSE No. 4706

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, November 4, 2025.

The committee on Ways and Means, to whom was referred the Bill to improve Massachusetts home care (House, No. 4306), reports recommending that the same ought to pass with an amendment substituting therefor the accompanying bill (House, No. 4706).

For the committee,

AARON MICHLEWITZ.

HOUSE No. 4706

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to improve Massachusetts home care.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 6A of the General Laws is hereby amended by inserting after
2 section 16GG the following 4 sections:-

3 Section 16HH. For the purposes of this section and sections 16II to 16KK, inclusive, the
4 following words shall, unless the context clearly requires otherwise, have the following
5 meanings:

6 “Abusive treatment”, physical, verbal and mental abuse, including, but not limited to,
7 bullying, either directed at or committed by individual home care consumers, surrogates, family
8 members, other caregivers and any other individuals present in the home care consumers’
9 household when the home care worker is providing home care services.

10 “Executive office”, the executive office of health and human services.

11 “Home care agency”, any business, including a sole proprietorship, nonprofit
12 organization or other entity that: (i) provides home care services to consumers in the consumers’

residences for compensation; (ii) represents itself as a home care agency by name, advertising or communications to the public, or uses the terms “home care agency” or “home care” in the entity’s name; or (iii) procures, offers, refers, provides or attempts to provide home care services by matching individuals seeking home care services to entities that provide home care services. “Home care agency” shall not include any of the following: (A) an entity operated by either the federal government or the commonwealth that provides home care services; (B) an entity that limits its business to the provision of house cleaning services; (C) an entity designated as an aging services access point pursuant to section 4B of chapter 19A; (D) a hospice program licensed under section 57D of chapter 111; or (E) a home health agency as defined in section 51K of chapter 111.

“Home care consumer”, an individual receiving home care services or any legal representative of such individual.

“Home care services”, supportive services provided to an individual in their residence to enable that individual to remain in their residence safely and comfortably, including, but not limited to, assistance with eating, toileting, dressing, bathing, transferring, ambulation and other activities of daily living, housekeeping, personal laundry and companionship. “Home care services” shall not include any of the following: (i) hospice services provided by an entity subject to licensure under section 57D of chapter 111; (ii) home health services provided by an entity subject to licensure under section 51K of chapter 111; (iii) services provided by a personal care attendant in the commonwealth’s personal care attendant program as defined in 130 CMR 422.000; or (iv) services provided under the MassHealth adult foster care program as defined in 130 CMR 408.402.

“Home care worker”, an individual employed by a home care agency who provides home care services to a consumer in the consumer’s residence.

“PCA quality home care workforce council”, the council established in section 71 of chapter 118E.

“Personal care attendant”, as defined in section 70 of chapter 118E.

“Surrogates”, as defined in section 70 of chapter 118E.

Section 16II. (a) No person or entity shall establish, maintain, operate or hold itself out as a home care agency, provide home care services or use the words “home care” to describe its services without a home care agency license issued pursuant to subsection (b); provided, that home care agency licensure shall be required for home care agencies that directly employ home care workers and home care agencies that contract with entities that employ home care workers.

(b)(1) The executive office shall issue for a term of 3 years, and may renew for like terms, a home care agency license to any person or entity that the executive office deems responsible and suitable to establish or maintain a home care agency and which meets the requirements of the rules and regulations promulgated pursuant to subsection (e). A license issued under this subsection shall not be transferable or assignable.

(2) The executive office may suspend, revoke or refuse to renew for cause a home care agency license.

(3) License application and renewal fees shall be established pursuant to section 3B of chapter 7.

(c) If the executive office determines a licensee has failed or refused to comply with requirements established under this section or the regulations promulgated thereunder, the executive office may: (i) deny an application for licensure; (ii) modify, suspend or revoke a license; or (iii) issue a fine of not more than \$500 for each day of such failure or refusal to comply. Each day during which a violation continues shall constitute a separate offense.

(d) The executive office, in collaboration with the executive office of aging and independence and the department of public health, may conduct surveys and investigations to monitor and enforce compliance with this section.

(e)(1) The executive office shall, in consultation with the executive office of aging and independence, the department of public health and the home care oversight advisory council established in section 16KK, promulgate rules and regulations for the licensing and conduct of a home care agency.

(2) The executive office shall ensure that home care agency licensure, reporting and oversight requirements align with the licensure, reporting and oversight requirements across the long-term care services and support system, including home health agency licensure and provider monitoring conducted by aging services access points.

(3) The regulations shall include, but shall not be limited to:

(i) background checks for all home care workers which shall include, but shall not be limited to: (A) Massachusetts criminal background checks; (B) state or county criminal history checks for each location outside of the commonwealth in which the home care worker is known to have lived or worked during the previous 5 years; (C) a review of the federal Office of Inspector General List of Excluded Individuals/Entities; (D) a review of the nurse aide registry;

(E) if applicable, a review of professional certifications or other credentials; and (F) for all home care workers who will transport home care consumers, verification of licensure, auto insurance and driving records for a minimum of the previous 5 years;

(ii) minimum standards for consumer-specific service plans and contracts that home care agencies shall develop with home care consumers; provided, that the plans shall include: (A) a detailed description of services, including services the home care agency is subcontracting to another agency or provider; (B) a written unit rate and total cost of services, inclusive of any additional fees or deposits; and (C) home care agency contact information for consumer questions;

(iii) minimum coverage requirements for workers' compensation insurance and liability insurance for the home care agency;

(iv) maintenance of a payroll process that follows all state and federal labor and wage laws for the home care agency;

(v) annual and ongoing training and competency requirements for home care workers and home care agency staff that interact with home care consumers; provided, that minimum training and competency requirements shall include: (A) confidentiality and privacy rights of home care consumers; (B) infection control and communicable diseases; (C) handling of emergencies, including safety and falls prevention; (D) observing, reporting and documenting changes in home care consumer needs and environment; (E) identifying and reporting suspected abuse, neglect or misappropriation of property; (F) understanding Alzheimer's disease and dementia, including person-centered care, activities of daily living, safety and dementia-related behaviors and communication; and (G) employee rights and remedies under the commonwealth's wage and

99 hour laws; provided further, that the trainings shall be culturally and linguistically competent for
100 the trainee;

101 (vi) policies and procedures to ensure home care workers have safe working conditions,
102 adequate safety training and a process for submitting complaints;

103 (vii) development and maintenance of an emergency preparedness plan;

104 (viii) quality metrics and standards for services provided to home care consumers,
105 including reporting mechanisms for tracking performance of home care agencies;

106 (ix) annual reporting by home care agencies on quality and any significant changes
107 related to home care agency finances;

108 (x) requirements and written processes for the timely reporting of home care consumer
109 complaints; and

110 (xi) requirements for home care agencies to provide adequate equipment and supplies for
111 home care workers.

112 (f) The executive office shall:

113 (i) review and process licensure applications, including a suitability review that ensures
114 the applicant shall meet the obligations and conditions of licensure, including, but not limited to:

115 (A) a review of the state debarment list maintained by the operational services division
116 and federal Office of Inspector General List of Excluded Individuals/Entities;

117 (B) a competency review where all individuals with at least a 5 per cent ownership stake
118 in the home care agency shall submit the individuals' names, contact information, companies

where they have at least a 5 per cent ownership interest, any civil or criminal findings against said individual and a completed background check; and

(C) a review to ensure that applicants have the financial capacity to provide ongoing home care services while maintaining compliance with labor and employment laws;

(ii) establish a process for a change of ownership that includes advanced notice to home care consumers and home care workers and a review by the executive office to determine if the new owner can meet the obligations and conditions of licensure, including a suitability review;

(iii) work with other state agencies to investigate and resolve complaints against the licensee; and

(vi) publicly post a list of licensed home care agencies on the executive office's website.

Section 16JJ. (a) The executive office, in consultation with the home care worker and consumer abuse stakeholder advisory committee established in subsection (b), MassHealth, the executive office of aging and independence, the department of public health and the PCA quality home care workforce council, shall adopt minimum standards and procedures for addressing abusive treatment of home care workers, personal care attendants and home care consumers in the commonwealth. The standards and procedures shall: (i) address abusive treatment, including the connection between abusive behavior by home care consumers and disruptive behavioral disorders; (ii) promote appropriate training and support for home care workers, personal care attendants and home care consumers; (iii) ensure a safe and healthy work environment for home care workers and personal care attendants; (iv) recognize the privacy rights of home care consumers; and (v) recognize the responsibilities of the consumer-employers of personal care attendants.

(b) There is hereby established a home care worker and consumer abuse stakeholder advisory committee within the executive office. The advisory committee shall advise the executive office on addressing abusive treatment of home care workers, personal care attendants and home care consumers, and shall periodically conduct studies and issue reports containing its findings and recommendations.

(c) The advisory committee shall consist of the following 15 members: the secretary of aging and independence or a designee, who shall serve as chair; the assistant secretary for MassHealth or a designee; the commissioner of public health or a designee; the chairs of the joint committee on aging and independence or their designees; and 10 persons to be appointed by the governor, 1 of whom shall be a personal care attendant, 1 of whom shall be a home care worker, 1 of whom shall be a consumer of personal care attendant services who shall be a member of the PCA quality home care workforce council, 1 of whom shall be a home care consumer, 1 of whom shall be a representative of the statewide independent living council, 1 of whom shall be a representative of the Disability Law Center, Inc., 1 of whom shall be a representative of Massachusetts Aging Access Association, Inc., 1 of whom shall be a representative of the Home Care Aide Council, 1 of whom shall be a representative of the Home Care Alliance of Massachusetts, Inc. and 1 of whom shall be a representative of the Local 1199 Service Employees International Union. The members of the advisory committee shall serve without compensation.

(d) The advisory committee shall advise the executive office on minimum standards and procedures for addressing abusive treatment in the home care sector and shall periodically conduct studies and issue reports containing findings and recommendations, which shall include, but shall not be limited to:

(i) reporting abusive treatment and debriefing after incidents of abusive treatment, including best practices for standards and procedures for reporting abuse to the home care workers' employers or appropriate state entities, including, in the case of personal care assistants, the PCA quality home care workforce council or MassHealth, without retaliation and while retaining the right to report any criminal activity to law enforcement; provided, that the standards shall include, but not be limited to, best practices for a debriefing process for affected home care workers and home care consumers following violent acts;

(ii) tracking and retaining records of abusive treatment, including best practices for standards and procedures for the executive office to track and monitor reports of both home care worker abuse and reports of home care consumer abuse or neglect;

(iii) informing home care workers of potentially unsafe working environments, including best practices for standards and procedures requiring employers of home care workers or other appropriate state entities, including, in the case of personal care attendants, the PCA quality home care workforce council or MassHealth, to regularly inform home care workers of patterns of abusive treatment by home care consumers that may indicate a potentially unsafe working environment; provided, that the standards and procedures shall balance respect for home care consumer privacy with the need to protect home care worker safety and ensure continuity of care;

(iv) employee training, including best practices for standards and procedures for home care consumer orientations and home care worker trainings on: (A) abusive treatment in the home care setting; (B) escalation cycles and effective de-escalation techniques; and (C)

185 culturally competent and peer-to-peer trainings and strategies to prevent physical harm with
186 hands-on practice or role play; and

187 (v) employer internal policies, including best practices for standards and procedures to:
188 (A) prevent abusive treatment among employees; (B) offer resources to employees for coping
189 with the effects of violence; and (C) develop labor-management workplace safety committees.

190 (e) The advisory committee shall submit a report containing findings and
191 recommendations, including drafts of proposed legislation or regulatory changes to carry out its
192 recommendations, with the secretary of the executive office, the clerks of the house of
193 representatives and the senate, the joint committee on aging and independence and the joint
194 committee on public health.

195 Section 16KK. (a) There is hereby established a home care oversight advisory council
196 within the executive office. The advisory council shall consist of the following 9 members: the
197 commissioner of public health or their designee, who shall serve as chair; the secretary of aging
198 and independence or their designee; the assistant secretary for MassHealth or their designee; the
199 chairs of the joint committee on aging and independence or their designees; and 4 persons to be
200 appointed by the governor, 1 of whom shall be a representative of the Home Care Aide Council,
201 1 of whom shall be a representative of the Home Care Alliance of Massachusetts, Inc., 1 of
202 whom shall be a representative of Massachusetts Aging Access Association, Inc. and 1 of whom
203 shall be a representative of Local 1199 Service Employees International Union.

204 (b) The advisory council shall advise the executive office on the oversight of licensed
205 home care agencies and shall assist in the development and implementation of regulations

promulgated by the executive office pursuant to subsection (e) of section 16II. The advisory council shall advise the executive office on:

(i) the process of implementing home care agency licensure requirements in the commonwealth pursuant to section 16II;

(ii) existing licensure, reporting and oversight requirements across the long-term care services and support systems and other relevant state agencies, including the provider monitoring conducted by the aging services access points, to avoid duplication and conflicting requirements;

(iii) developments and trends in other states relative to the licensure of home care agencies;

(iv) processes to ensure that the home care agency licensure process shall align with licensure for home health agencies and with state oversight process already in place through the aging services access points, the home care worker registry established in section 4D of chapter 19A and the nurse aide registry established in section 72J of chapter 111;

(v) the development of a process for the commonwealth to conduct a statewide home care market analysis and report on current available home care services in all regions; and

(vi) any additional subjects that the advisory council and the executive office deem necessary and appropriate.

SECTION 2. Section 4 of chapter 151B of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by adding the following subsection:-

20. It shall be unlawful discrimination for any individual consumer of services provided by a personal care attendant, as defined in section 70 of chapter 118E, to engage in conduct described in subsections 1 to 3, inclusive; 4 to 5, inclusive; 9A; 11A; 16; 16A; and 19.

SECTION 3. The executive office of health and human services shall promulgate regulations for the temporary licensure of home care agencies and shall issue temporary licenses for home care agencies within 180 days of the effective date of this act; provided, that the executive office shall issue a temporary license to an applicant upon verification that the applicant is currently contracted with an aging services access point or MassHealth. Such temporary licenses shall be valid until the date established by the executive office pursuant to section 5 by which entities providing home care services shall be licensed as home care agencies.

SECTION 4. The executive office of health and human services shall, in consultation with the executive office of aging and independence, the department of public health and the home care oversight advisory council established in section 16KK of chapter 6A of the General Laws, inserted by section 1, adopt rules and promulgate regulations pursuant to subsection (e) of section 16II of said chapter 6A, inserted by section 1, for the licensing and conduct of home care agencies within 1 year of the effective date of this act.

SECTION 5. The executive office of health and human services shall establish a date not later than 1 year after adopting rules and promulgating regulations pursuant to this act by which entities providing home care services shall be licensed as home care agencies.

SECTION 6. The home care worker and consumer abuse stakeholder advisory committee established in subsection (b) of section 16JJ of chapter 6A of the General Laws, inserted by section 1, shall meet at least monthly in the first 6 months after the effective date of this act and

247 shall file a report containing its initial findings and recommendations not later than 6 months
248 after the effective date of this act.

249 SECTION 7. Members of the home care oversight advisory council established in section
250 16KK of chapter 6A of the General Laws, inserted by section 1, shall be named and the council
251 shall commence its work within 60 days of the effective date of this act.